STANDARD OPERATING PROCEDURE			P-3700	
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 06/01/06	DATE REVISED **06/12/20**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE ROAD PATROL		RESOURCES N.R.S. 29-828, 29-829		
SUBJECT SUSPICIOUS PERSONS/FIELD INTERVIEW		CROSS REFERENCE		

I. Purpose:

The purpose of this policy is to establish procedures for making contact with suspicious persons and utilizing field interview cards.

II. Policy:

Deputies of the Sarpy County Sheriff's Office Road Patrol are tasked with crime prevention and suppression. As a result, deputies are encouraged to make contact with any person or persons acting in a suspicious manner. Deputies shall complete field interview cards regarding such contacts and any time deputies believe information may be of aid in the future for crime prevention, suppression, or the apprehension of law violators. The quality and frequency of a deputy's field contacts can make a substantial contribution to the success of the patrol division. The information gathered on field interview cards shall be entered into the computer data base for future use and the information shall be disseminated in the Sarpy County Sheriff's Office Intelligence Bulletin.

III. Procedure:

A. Suspicious Persons-Deputy Responsibilities:

1. Deputies should make contact with any person that appears to be acting in a suspicious manner or any person whose presence at a location, given the time of day, is suspicious.

2. Deputies should attempt to identify and run a records check on all suspicious persons.

3. Deputies should examine the area for evidence of recent criminal activity.

4. A deputy may stop any person in a public place whom he or she reasonably suspects (reasonable suspicion) of committing, who has committed, or who is

about to commit a crime and may demand of him or her, his or her name, address and an explanation of his or her actions (N.R.S. 29-829).

B. **Reasonable Suspicion:** Reasonable suspicion is a level of certainty more than mere suspicion but less than probable cause. Reasonable suspicion must be articulable. Deputies may consider, but are not limited to, the following criteria when establishing reasonable suspicion to make contact with an individual or frisk an individual for weapons:

1. **Appearance:** The individual matches the description of an individual wanted for a crime; the individual appears to be recently injured or under the influence of alcohol or drugs; or the individual's clothes bulge in a manner suggesting the presence of a dangerous object.

2. **Actions:** The individual is running away from an actual or possible crime scene; the individual is acting in a furtive or nervous manner, or the individual made incriminating or threatening statements.

3. **Prior Knowledge of the Individual:** The deputy has personal knowledge that the individual has a history of criminal activity or weapon possession.

4. **Location:** The individual is encountered in an area of high crime or in an isolated area where the deputy is unlikely to receive aid if attacked.

5. **Time of Day:** The individual is encountered late at night or very early in the morning. The individual is encountered at a time of day during which criminal activity of the kind suspected usually occurs.

6. **Deputy Training and Experience:** The deputy observes conduct which he or she recognizes as the pattern followed in a particular criminal offense.

7. **Law Enforcement Purpose:** The deputy is investigating a specific crime or type of criminal activity.

8. **Source of Information:** The deputy was supplied information regarding the individual by a reliable witness or third party.

C. **Stop and Frisk-Deputy Responsibilities:** When circumstances reasonably indicate to a deputy that a search of an individual for weapons is indicated in order to protect the life of such deputy such search for weapons may lawfully be made (N.R.S. 29-828).

1. This search for weapons is considered a **frisk** and is intended to discover weapons only. The following guidelines shall be followed regarding frisks:

a) The deputy must have reasonable suspicion that the individual to be searched is carrying a dangerous object.

b) A frisk is a "pat down" only. The frisk's sole objective is to determine if the individual who has been stopped possesses weapons. Only the exterior of clothing may be searched with the exception of a heavy coat. A deputy may go inside a heavy coat if necessary for an effective "pat down."

c) Male deputies shall confine frisks of females to outer garments. At no time shall the frisk include any inappropriate touching or comment.

d) Female deputies shall confine frisks of males to outer garments. At no time shall the frisk include any inappropriate touching or comment.

D. **Field Interview Cards-Deputy Responsibilities:** Field interview cards shall be completed as thoroughly as possible and shall always include the deputy's name and badge number. Field interview cards may also be completed using the field interview form in the Traffic and Criminal Software (TraCS) program. Field interview cards shall be completed and turned in at the end of the deputy's tour of duty. Field interview cards shall be completed under the following conditions:

1. All felony arrests.

2. All drug related arrests.

3. Contact with suspicious persons or activity.

4. Contact with an individual identified as having gang involvement (signal 66).

5. When no other reports are made on an incident but documentation may still be desirable (e.g. disturbances where no arrests are made, civil matters).

6. Contact with an individual on probation or parole.

7. Contact with an individual identified as a registered sex offender (signal S).

8. Contact with or the arrest of an individual who may be dangerous to deputies in the future.